

DEPARTMENT OF VETERANS AFFAIRS

**SOLE SOURCE JUSTIFICATION UNDER SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL
ITEMS IN ACCORDANCE WITH FAR 13.5**

Acquisition Plan Action ID: 36C242-25-AP-1908

1. **Contracting Activity:** Department of Veterans Affairs, VISN 02, Network Contracting Office (NCO) 2
2875 Union Road, Suite 3500, Cheektowaga, NY 14227.

2237 # 528-25-3-4895-0034

2. **Nature and/or Description of the Action Being Processed:**

This is a request for a sole source requirement for the monthly, annual, and triannual service and inspection visits of three (3) York chillers located at the Buffalo VA Medical Center. The proposed purchase order shall be provided to Johnson Controls, Inc., 5757 N Green Bay Avenue, Milwaukee, Wisconsin 53209, from 05/01/2025 to 04/30/2026, to include four (4) option years, in the amount of \$ [REDACTED].

3. **Description of Supplies/Services Required to Meet the Agency's Needs:**

The procurement is to provide a service contract to conduct annual, monthly, and triennial preventative maintenance services on three (3) York chillers located at the Buffalo VA Medical Center.

Building	Description	Model Number	Chiller Size
28	YMC2 Magnetic Bearing Centrifugal Chiller	YMC2 M6 331 951 1000	1000 tons.
28	YMC2 Magnetic Bearing Centrifugal Chiller	YMC2 M6 331 951 1000	1000 tons.
28	YMC2 Magnetic Bearing Centrifugal Chiller	YMC2 M6 331 951 1000	1000 tons.

The contractor shall provide York factory trained technicians that are qualified to perform maintenance services on York Chiller Systems.

4. **Statutory Authority Permitting Restricted Competition:**

FAR 13.5 Simplified Procedures for Certain Commercial Items. The statutory authority for applying the Simplified Procedures for Commercial Items of FAR 13.5 is 41 U.S.C. § 1901 and is implemented by FAR 13.106-1(b)(2) for restricting competition on this procurement. **Competition is restricted on this procurement for the reason below:**

- (X) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements
- () Unusual and Compelling Urgency
- () Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services
- () International Agreement
- () Authorized or Required by Statute

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- () National Security
- () Public Interest

5. Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

A proprietary letter from Johnson Controls, Inc. was received and states that York chillers are manufactured, installed, serviced, designed, engineered, and programmed by Johnson Controls, Inc. The Johnson Controls Buffalo office covers the city of Buffalo and is the only vendor factory trained to provide all levels of service to this equipment.

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:

A search of SAM.gov validated that Johnson Controls, Inc. has an active registration as a large business under NAICS code 238220.

A general search of GSA eLibrary using keywords "York Chiller Maintenance" identified zero (0) available schedules. Further search of GSA eLibrary using keywords "Johnson Controls, Inc" identified three (3) available multiple award schedules for Industrial Products and Services – Hardware and Tools, Security and Protection – Security Systems, and Facilities – Facilities Solutions. Upon further review, none of which could fulfill the needs of this requirement.

A general search of SBA DSBS search engine was conducted using NAICS code 238220 and keywords "York Chiller Maintenance" identified zero (0) vendors that matched the search criteria. An additional search of DSBS using keywords "Johnson Controls, Inc" yielded 4,449 vendor profiles, none of which could fulfill the needs of this requirement.

An additional search of VA's VetCert database using keywords "Johnson Controls, Inc." revealed that this vendor is not registered in the database.

An Intent to Sole Source Notice (36C24225Q0422) was posted on SAM.gov from 03/10/2025 to 03/17/2025 and received zero (0) responses.

A proprietary letter from Johnson Controls, Inc was received and states that York Chillers are manufactured, installed, serviced, designed, engineered, and programmed by Johnson Controls. Johnson Controls Buffalo office covers the city of Buffalo and is the only vendor factory trained to provide all levels of these services to this equipment.

7. Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:

Price reasonableness was determined by comparing the price of the quote received from Johnson Controls, Inc. for the service and maintenance of three (3) York chillers, to the price of contract VA25017C0130 for similar services located at the John D. Dingell Department of Veterans Affairs Medical Center ending on 06/25/2022 in the amount of \$ [REDACTED]. The total price of the quote received from Johnson Controls, Inc. is \$ [REDACTED], which is \$ [REDACTED] or [REDACTED] % less than the cost of

contract VA25017C0130. Therefore, the quote received from Johnson Controls, Inc. shall be considered fair and reasonable.

8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** See section 6.

9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** N/A

10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:**

Johnson Controls, Inc., 5757 N Green Bay Avenue, Milwaukee, Wisconsin 53209

11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:**

None, as the reason for this sole source are certifications associated with York chiller equipment.

12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Corey Fitzery/Jerome Okonzak
Engineering Acquisition Specialist/COR
Buffalo VA Medical Center

Date

13. **Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):**

- a. **Contracting Officer or Designee's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

Nathan Northrup
Contracting Officer, Services Team 1
RPO East/NCO 2 Contracting Office

Date

VHAPG Part 813.5 Simplified Acquisition Procedures for Certain Commercial Items
Attachment 1: Request for Sole Source Justification Template >SAT-\$7.5M under FAR13.5

- b. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$750K):** I certify the justification meets requirements for other than full and open competition.

Joseph Cellino
Branch Chief, Services Team 1
RPO East, NCO 2 Contracting Office

Date